法學英文主題整理：公司法與商事法（Company & Commercial Law）

> 涵蓋 104-114 年司律一試法學英文考古題，依主題分類彙整詞彙、中英對照與考古題原文。

一、核心詞彙與中英對照

英文	中文	出題年度
shareholder / stockholder	股東	多年
director	董事	多年
independent director	獨立董事	104、109
board of directors	董事會	105
shareholders' meeting	股東會	104
company limited by shares	股份有限公司	104
close company	閉鎖性公司	107
controlling company	控制公司	114
affiliate enterprises	關係企業	114
merger	合併	108、112
short-form merger	簡易合併	112
appraisal rights	異議股東股份收買請求權	104、106、112
shareholder derivative suit	股東代位訴訟	109
cumulative voting	累積投票制	114
articles of incorporation	公司章程（設立章程）	105
fiduciary duty	受託人義務	108

duty of loyalty	忠實義務	111
duty of care	注意義務	111
discharged (director)	解任（董事）	108、112
quorum	法定出席人數	108
no voting rights shares	無表決權特別股	113
multiple voting rights shares	複數表決權特別股	113

二、重要例句與考古題解析

1. 公司類型（Company Types）

> **104 年第 58 題**
> A company, organized by one or more shareholders, with the total capital of the company being divided into shares and each shareholder being liable for the company in an amount equal to the total value of shares subscribed by him, is called:
> (A) an unlimited company (B) a company limited by shares
> (C) an unlimited company with limited liability shareholders (D) a limited company
> → 答案：**(B)**

> **考點提示：**
>
> - **company limited by shares**（股份有限公司）：資本分為股份，股東以認購金額為限負責。
> - 四種公司類型：unlimited company（無限公司）、company limited by shares（股份有限公司）、unlimited company with limited liability shareholders（兩合公司）、limited company（有限公司）。

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2. 股東會權限（Shareholders' Meeting）

104 年第 57 題

In a public company limited by shares, which of the following has the power to elect or remove a director?

(A) directors (B) supervisors

(C) the shareholders' meeting (D) president

→ 答案：**(C)**

考點提示：

- 董事之選任與解任為**股東會**之專屬權限。
- 注意 (A) directors 本身無權自行選任/解任同僚，(B) supervisors（監察人）亦無此權限。

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3. 董事會（Board of Directors）

105 年第 70 題

A group of people elected by the owners of a business entity, who have decision-making authority, voting authority, and specific responsibilities which in each case is separate and distinct from the authority and responsibilities of owners and managers of the business entity is called the ___.

(A) Board of Shareholders (B) Board of Directors

(C) Board of Supervisors (D) Board of Managers

→ 答案：**(B)**

考點提示：

- **Board of Directors**（董事會）：由股東（owners）選出，享有決策權，職責與股東和經理人各自獨立。

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4. 忠實義務（Duty of Loyalty）

111 年第 58 題

When the director and the corporation are both parties to a transaction which involves a director's conflicting interests. The director cannot participate in the corporate decision-making process that approves the transaction in order to avoid violating the ___ to the corporation.

(A) duty of care (B) duty of loyalty

(C) duty of reliance (D) duty of good deed

→ 答案：**(B)**

考點提示：

- **duty of loyalty**（忠實義務）：董事涉及利益衝突之交易時，不得參與公司決策。
- 與 **duty of care**（注意義務）之區別：loyalty 著重「避免利益衝突」，care 著重「盡善良管理人注意」。
- 干擾選項：(C) duty of reliance、(D) duty of good deed 非標準法律用語。

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5. 獨立董事（Independent Director）

104 年第 60 題

Directors who possess professional knowledge and certain qualifications and may not have any direct or indirect interest in the company are called ___.

(A) insider directors (B) independent directors

(C) dummy directors (D) shadow directors

→ 答案：**(B)**

109 年第 62 題

John joined ABC Inc.'s board as an independent director in spring of 2017. Which of the following situations, from the perspective of Taiwan's Securities and Exchange Act and related regulations, would most likely pose a question about his independence?

(A) John used to work as head of the product design department at ABC Inc. from 2000 to 2014. However, John left his job due to a family situation in early 2014. In spring 2017, at the request of the CEO of ABC Inc., John returned to ABC and joined the board as an independent director.

(B) John used to work as an outside counsel for ABC Inc. from 2000 to 2016. In spring 2017, at the request of the CEO of ABC Inc., John agreed to join ABC Inc.'s board as an independent director.

(C) John worked as CEO of DEF Inc., a subsidiary owned 100 percent by ABC Inc., from 2000 until his retirement in 2014. In spring 2017, at the request of the CEO of ABC Inc., John returned to ABC Inc. and joined the board as an independent director.

(D) John worked as the head of a government agency that directly supervises ABC Inc.'s business activities. After retiring in late 2016, John joined ABC's board as an independent director in spring 2017.

→ 答案：**(B)**

考點提示：

- 104 年考定義：獨立董事須具專業知識、與公司無直接或間接利害關係。
- 109 年考實務判斷：(B) 2016 年仍擔任外部律師（outside counsel），2017 年即成為獨董，此一年間隔最短，利害關係最密切。
- (A)(C) 均已離職 3 年以上，(D) 為政府機關首長已退休。

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6. 董事解任（Removal / Discharge of Director）

108 年第 69 題

The ways to remove a director are multiple in Taiwan's Company Act. Which of the following statements is incorrect?

(A) An individual shareholder with 3% shareholding can file a suit and ask the court to remove, with cause, a director of her company.

(B) A two-thirds majority of shareholders can resolve to remove a director of their company.

(C) A majority of shareholders can resolve to elect a new board, which in reality removes all sitting directors.

(D) A majority of supervisors can convene a meeting and remove a director if all supervisors agree to it.

→ 答案：**(D)**

112 年第 62 題

A director of a company limited by shares may be ___ at will by a special resolution of a shareholders' meeting.

(A) discontinued (B) discharged

(C) disqualified (D) waived

→ 答案：**(B)**

考點提示：

- **discharged**（解任）為解任董事之正確用語。108 年考解任方式：(D) 監察人無權解任董事為錯誤選項。
- 112 年考詞彙：(A) discontinued（中止）、(C) disqualified（取消資格）、(D) waived（免除）皆非正確用語。

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7. 異議股東股份收買請求權（Appraisal Rights）

104 年第 59 題

Which of the following is NOT the triggering event of a dissenting shareholder's appraisal right?

(A) merger (B) sale of substantially all of the company's assets

(C) spin off (D) share exchange pursuant to Article 156, Paragraph 8 of the Company Law

→ 答案：(D)

106 年第 62 題

___ are the rights of shareholders to demand the payment of a fair price for their shares during a merger or other extraordinary corporate event. In this sense, the rights ensure that dissenters receive the benefit of their bargain by preventing corporations involved in mergers from paying less than what the company is worth.

(A) Estimate rights (B) Appraisal rights

(C) Compelling rights (D) Forced rights

→ 答案：(B)

112 年第 61 題

Taiwan's Company Law concerning "Short-Form" merger (parent merges with 90 percent owned subsidiary) relies on ___ to assure dissenting shareholders have the right to opt-out.

(A) proposal rights (B) appraisal rights

(C) voting rights (D) information rights

→ 答案：(B)

考點提示：

- **appraisal rights**（股份收買請求權）為最高頻公司法考點（104、106、112 三年出題），務必熟記。
- 觸發事由：merger（合併）、sale of substantially all assets（讓與全部或主要資產）、spin off（分割）。(D) 之 share exchange 非觸發事由。
- 112 年考 short-form merger（簡易合併）：母公司持有 90% 以上子公司股份之合併，異議股東仍得以 appraisal rights 退出。

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8. 累積投票制（Cumulative Voting）

114 年第 68 題

In the process of electing directors at a shareholders' meeting, ___ is a voting system in which each voter may cast more than one vote for the same candidate, the number of which exercisable in respect of one share shall be the same as the number of directors to be elected, and the total number of votes per share may be consolidated for election of one candidate.

(A) cumulative voting (B) straight voting

(C) collective voting (D) accumulative voting

→ 答案：**(A)**

考點提示：

- **cumulative voting**（累積投票制）：每一股的投票數 = 應選董事名額數，可集中投給一位候選人，藉此保障少數股東。公司法第 198 條。
- 干擾選項：(B) straight voting（普通投票）為一般投票方式；(D) accumulative 非標準法律用語。

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9. 股東代位訴訟（Shareholder Derivative Suit）

109 年第 63 題

Based on Taiwan's Company Act, which of the following descriptions of a shareholder derivative suit is inaccurate?

(A) A shareholder derivative suit is a suit brought by a shareholder on behalf of the company.

(B) In limited situations, a company has the right to ask the shareholder to withdraw the shareholder derivative suit.

(C) If a shareholder derivative suit prevails in court, the shareholder who brought the suit may, under certain limited conditions, receive monetary compensation.

(D) A shareholder needs to hold more than 1 percent of outstanding shares to file a shareholder derivative suit.

→ 答案：**(B)**

考點提示：

- **shareholder derivative suit**（股東代位訴訟）：股東為公司之利益，代公司對董事等提起之訴訟。公司法第 214 條。
- (B) 公司無權要求股東撤回代位訴訟，為錯誤選項。
- (D) 持股門檻為 1%（需繼續持有一年以上）。

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10. 閉鎖性公司（Close Company）

107 年第 63 題

According to the Close Company chapter of Taiwan's Company Act, which of the following statements is most likely to be incorrect?

(A) When the number of shareholders exceeds 50, the status of a close company will be lost automatically.

(B) To maintain the status of a close company, using a public channel to raise funds is strictly prohibited with no exception.

(C) To facilitate capital formation, shareholders can use a more flexible way to pay for their shares, such as labor or service.

(D) The corporate charter should stipulate a clear limitation on the free transferability of shares.

→ 答案：**(B)**

考點提示：

- **close company**（閉鎖性公司）：股東人數不超過 50 人，不公開發行。公司法第 356-1 條以下。
- (B)「嚴禁以公開方式籌資，毫無例外」為錯誤：閉鎖性公司雖原則不公開發行，但仍有例外規定（如私募）。
- (C) 閉鎖性公司可以勞務或信用出資。

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11. 控制公司與關係企業（Controlling Company & Affiliate Enterprises）

114 年第 69 題

ABC Co. holds 80% of DEF Co.'s shares. DEF Co., in turn, holds all of GHI Co.'s shares. In the meantime, ABC Co. also holds 60% of JKL Co.'s shares. According to Chapter VI-I on Affiliate Enterprises of Taiwan's Company Act, which of the following statement is correct?

(A) ABC Co. is the controlling company of GHI Co.

(B) DEF Co. is the controlling company of JKL Co.

(C) JKL Co. is the controlling company of DEF Co.

(D) JKL Co. is the controlling company of GHI Co.

→ 答案：**(A)**

考點提示：

- **controlling company**（控制公司）：直接或間接控制他公司經營者。ABC 持有 DEF 80%，DEF 持有 GHI 100% → ABC 間接控制 GHI。
- **affiliate enterprises**（關係企業）：具有控制從屬關係之企業。公司法第 369-2 條以下。

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12. 章程應記載事項（Articles of Incorporation）

105 年第 69 題

Which of the following is NOT required to be contained in the Articles of Incorporation of a corporation limited by shares?

(A) The names of directors and supervisors, and the term of their respective offices

(B) The par value of share

(C) The name of the company

(D) The date of establishment of the Articles of Incorporation

→ 答案：**(A)**

考點提示：

- 章程必要記載事項包括公司名稱（C）、票面金額（B）、章程訂立日期（D）等。
- (A) 董事及監察人之姓名及任期**非**章程必要記載事項，為正確答案。

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13. 合併（Merger）

108 年第 61 題

John is the CEO and chairman of ABC Corp. He entered into an agreement to merge his company with XYZ Corp. In return, shareholders of ABC will receive XYZ shares as payment, which have a slightly higher market value. One of the following procedures is the least likely to apply in this scenario. Please identify it.

(A) Both boards need to call a meeting properly and approve this transaction.

(B) Shareholders in both companies need to convene, with a quorum, to examine the details of the merger agreement and approve it.

(C) For those shareholders who do not agree to the ratio of the shares exchange, they may turn to the court and ask it to repudiate the transaction.

(D) As the CEO and chairman, John is not required to excuse himself from voting at the shareholder meeting automatically, unless he has a conflict of interest that could result in a possible breach of fiduciary responsibility.

→ 答案：(C)

考點提示：

- 合併程序：雙方董事會及股東會均須核准。(C) 不同意換股比例之股東「向法院請求撤銷交易」最不可能 → 應行使 appraisal rights（收買請求權），而非撤銷交易。
- **fiduciary responsibility**（受託人責任）：CEO 兼董事長原則上不須迴避股東會投票，除有利益衝突。

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14. 無表決權特別股（No Voting Rights Shares）

113 年第 62 題

Based on Taiwan's Company Act, which of the following can be applied to the public company?

(A) Multiple voting rights shares (B) Voting Agreement

(C) Restrictions on the transfer of shares (D) No voting rights shares

→ 答案：(D)

考點提示：

- 公開發行公司可發行**無表決權特別股**。
- (A) 複數表決權特別股限非公開發行公司（閉鎖性公司）；(B)(C) 同為閉鎖性公司之制度。

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15. 現金增資新股保留（New Share Issuance）

110 年第 61 題

ABC Co. is a Taiwanese public company whose stock is listed on Taiwan Stock Exchange. It plans to raise capital by cash offering of new shares. In handling this new share issuance project, which of the following parties is NOT the party that ABC Co. shall reserve the newly issued shares for?

(A) ABC Co.'s existing shareholders (B) ABC Co.'s employees

(C) ABC Co.'s directors (D) Public investors

→ 答案：(C)

考點提示：

- 公開發行公司現金增資新股應保留予：原有股東（A）、公司員工（B）、公開招募（D）。
- (C) 董事**非**新股保留之對象，為正確答案。公司法第 267 條。

三、一試重點提示

1. appraisal rights（異議股東收買請求權）：出題 3 次（104、106、112），為最高頻公司法考點，務必熟記定義、觸發事由與 short-form merger 之適用。
2. independent director（獨立董事）：出題 2 次（104 定義、109 實務判斷），須與公司無重大利害關係。
3. director removal / discharged（董事解任）：出題 2 次（108 解任方式、112 詞彙），注意監察人無權解任董事。
4. duty of loyalty vs. duty of care：忠實義務著重避免利益衝突，注意義務著重善良管理人注

意。111 年出題。

5. **close company**（閉鎖性公司）：股東不超過 50 人，可勞務出資，可發行複數表決權特別股。107 年出題。
6. **cumulative voting**（累積投票制）：保障少數股東選舉權，公司法第 198 條。114 年出題。
7. **controlling company / affiliate enterprises**（控制公司/關係企業）：注意間接控制之認定。114 年出題。
8. **shareholder derivative suit**（股東代位訴訟）：股東為公司利益代位提訴，持股門檻 1%。109 年出題。
9. **merger / fiduciary duty**（合併/受託人義務）：不同意換股比例應行使 appraisal rights，非撤銷交易。108 年出題。
10. **no voting rights shares vs. multiple voting rights shares**：前者適用於公開發行公司；後者限閉鎖性公司。113 年出題。